

Civil Disobedience

Study Guide by Course Hero

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Book Basics

AUTHOR
Henry David Thoreau

YEAR PUBLISHED
1849

GENRE
Philosophy

AT A GLANCE
Civil disobedience, or the refusal to follow certain laws or government demands as a peaceful form of protest and a way of achieving a social goal, is a tactic used by individuals and reform movements around the world. Henry David Thoreau was one of the first to write a practical manual for civil disobedience, citing his own actions as an example. The essay, a personal response to the author's imprisonment for not paying a poll tax, urges concerned citizens to follow their consciences rather than the laws. In Thoreau's case, his conscience led him to oppose American slavery and the Mexican–American War. He specifically discusses the pitfalls of American democracy and offers guidelines for effective resistance to injustice, adaptable to any place and time. Many social reformers, including Indian independence leader Mohandas Gandhi and American civil rights activist Martin Luther King Jr., have cited "Civil Disobedience" as inspiration.

ABOUT THE TITLE
Henry David Thoreau's original title for this essay was "Resistance to Civil Government." The essay was first delivered as a lecture before it was published. After his death, the essay was reprinted as "On the Duty of Civil Disobedience" and later shortened to "Civil Disobedience," a phrase, never used in the essay itself, which means "the act of declining to follow certain laws or government demands as an act of protest." In "Civil Disobedience," Thoreau responds to a text by English clergyman William Paley, called "The Duty of Submission to Civil Government," which appears in *The Principles of Moral and Political Philosophy* (1785). Thoreau's second title may have been chosen to mirror the title of a different chapter in Paley's book: "On the Duty of Civil Obedience."

Main Ideas

Citizen's Duty

Thoreau argues that each individual is responsible for creating the society they want to live in. "Let every man make known what kind of government would command his respect," he advises in Section 1. Rather than wait for reformers or elected representatives to make changes, citizens should make changes themselves. All people who want an end to slavery, for

instance, should "at once ... withdraw their support, both in person and property, from the government." This disobedience is not only their right but their responsibility.

The essay explains how Thoreau believes a model citizen must act. Despite his desire to be a "bad subject," Thoreau believes he is doing what is best for the country. Most significantly, he reverses traditional notions of citizenship and patriotism. Those who disobey unjust laws, he thinks, are the real "patriots" who "serve the State with their consciences." By contrast, soldiers and legislators serve the State only with their bodies.

Law Versus Conscience

When law and conscience conflict, Thoreau believes no one should question which to choose. A society in which citizens are driven by their inner moral compasses will be a better place for everyone. Otherwise, he is not sure why individuals have consciences if not to guide them in difficult situations.

Laws can change according to the interests of the group in power, a group chosen because it is "physically the strongest." Laws value efficiency and convenience: "a consistent expediency." Legislators are neither perfect nor considerate of their constituents' best interests. For example, Daniel Webster defends slavery because it is permitted in the Constitution, not because it serves the needs of the people. And the American government itself is only "a tradition, though a recent one."

Thoreau is more interested in what he sees as universal, unchanging human needs, such as justice and freedom. He has faith that individual citizens can determine the right thing to do; they simply need the courage to do it.

State Abuse of Power

Thoreau's frequent references to "the State" are an example of metonymy, or the use of a word to represent a larger, closely associated concept. By "the State," Thoreau means the American government on a federal and state level and, more broadly, any ruling institution of government. He refers, for instance, to a possible "free and enlightened State" he has imagined. In the United States, however, the State still wields its power without justice or wisdom.

He offers several examples of State-sanctioned violence. Wars lead soldiers to their deaths, make men act against their own consciences, and cripple the invading nation. Enslaved people comprise one sixth of the American population, and the rest allow slavery to continue for the sake of "commerce and agriculture." Anyone who fights for justice is imprisoned and fined. The State is described as a "machine" that values "expediency" or efficiency above all.

But Thoreau does not place all the responsibility for immorality with the powerful. If citizens felt empowered to question authority, Thoreau thinks, the State would not practice or condone injustice. The government can abuse power only with the approval of the governed: "It can have no pure right over my person or property but what I concede to it." He challenges readers to think the same way.

The Ideal Government

According to Thoreau, an ideal governing body honors individual desires and needs, promotes justice above all, and respects dissenting voices. He quotes Confucius as saying, "Poverty and misery are subjects of shame" in a reasonable government: good leadership cares for its citizens.

Thoreau identifies ways for the current leadership to improve. Although he does not oppose the idea of government or democracy, he believes U.S. democracy is not working as intended. He wants the ruling powers held accountable to the individuals they rule. He questions the effectiveness of elected representatives who make decisions on behalf of the people. Through his interrogation of American political systems, Thoreau challenges readers to imagine a political system that actually represents the desires of its citizens. How would this ideal government make laws? How would it act toward other nations? How would it differ from the current government?

In Context

Thoreau's Transcendentalism,

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Individualism, and Solitude

Henry David Thoreau was a member of the transcendentalist movement, which combined literature and spirituality into a life philosophy. The movement arose in New England as a response to the increasingly conservative Unitarian church. The name most often associated with transcendentalism is Ralph Waldo Emerson, the movement's leader and Thoreau's mentor.

Transcendentalism emphasized rising above, or "transcending," ordinary life. It prized idealism over materialism and insight over tradition. To the transcendentalists, spiritual authority came from the individual soul, not an external deity. Everyone needed to find truth from within. The movement believed strongly in the human conscience as a guiding light, leading to Thoreau's call to conscience in "Civil Disobedience." He believed individuals were not only empowered but obligated to determine and to act on their own moral codes.

Although most transcendentalists tried to live by these principles, Thoreau took them to the extreme. For two years he famously lived off the land at his cabin at Walden Pond with complete self-sufficiency. Because transcendentalists believed nature was humanity's best teacher, Thoreau wanted to learn from nature as well as he could.

As someone who believed guidance comes from within, Thoreau deeply valued solitude. He befriended outcasts and avoided social activities. Skeptical of organized social reform movements, he believed reform should start with the individual rather than with group activities. When he became involved in the abolitionist (antislavery) movement, he was following his own conscience, not the tide of the times. His demeanor could be intimidating, even to those who agreed with him. In fact, Emerson described Thoreau as "somewhat military in his nature, not to be subdued, always manly and able, but rarely tender."

Slavery in the United States

Thoreau did not believe in ignoring society's crimes, and he speaks out against slavery in "Civil Disobedience." In the 1840s, when "Civil Disobedience" was written, slavery was undoubtedly the most controversial and divisive issue in the country.

The first Fugitive Slave Law of 1793 allowed states to seize, return, and try without a jury any slaves who crossed federal or state borders. Antislavery activists, especially in the North, rebelled against this law throughout the early 19th century, pushing for jury trials in fugitive slave cases and smuggling persons who escaped from slavery to freedom through the Underground Railroad network (escape routes leading from the South to the North).

During Thoreau's lifetime, the abolitionist or antislavery movement gained ground. A group of 60 abolitionist leaders founded the American Anti-Slavery Society in Philadelphia in 1833. Among them was the famous abolitionist William Lloyd Garrison. The society encouraged nonviolent resistance, including educating the public with lectures and boycotting products, such as cotton, that were manufactured with the aid of slave labor. Antislavery activists even discussed independence from the slave states. Thoreau critiques some of these abolitionist tactics in "Civil Disobedience," believing direct forms of resistance to be more effective.

Concord, Massachusetts, where Thoreau lived, was active in the abolitionist movement. Debates in Concord's lyceum, or public meeting hall (where Thoreau briefly worked as an officer), included discussions on whether enslaved people should all be emancipated at once and whether forcible resistance was ever appropriate. Thoreau's mother, Cynthia Dunbar Thoreau, was involved in the Underground Railroad and the Female Anti-Slavery Society.

To counter the abolitionists' strength, Southern states fought back with a renewed Fugitive Slave Law in 1850. The new act not only denied fugitives the right to a trial but required the federal government to actively help slave owners capture those who escaped. Daniel Webster, a senator from New Hampshire and Massachusetts known for his eloquent speeches, famously endorsed the new Fugitive Slave Law and its inclusion in the Compromise of 1850 (a series of five separate Congressional bills passed to define the slave status of territories acquired as a result of the Mexican–American War). Although the 1850 law was passed after Thoreau wrote "Civil Disobedience," Thoreau names Webster as a politician willing to compromise his morals and support the continuation of slavery.

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Opposition to the Mexican–American War

Another event fueling the fire of the slavery debate was the Mexican–American War (also called the Mexican War), beginning in 1846. In the early 1800s the land that is now the states of Texas, Nevada, New Mexico, Utah, Arizona, California, and part of Colorado belonged to Mexico. When Texas entered the United States in 1845, American politicians were enthusiastic about the prospect of acquiring more territory. The American population was growing, both by birth and by immigration. John O'Sullivan, editor of the *Democratic Review*, wrote about the nation's "manifest destiny to overspread the continent." Advocates for expansion into Western territory adopted the phrase "manifest destiny" to mean a divine right or mission.

However, Mexico was not eager to give up more land. To take the territory by force, President James K. Polk sent troops to the border of Texas. When Mexicans fought back, Polk used their defense as an excuse to declare all-out war.

The addition of Texas to the Union raised another problem: would Texas be a slave state or a free state? Many of the war's opponents, especially abolitionists, saw the war as an excuse to add more slave states to the Union in the South. They viewed Polk's attack as needless aggression for the purpose of sustaining slavery. Thoreau was critical of the concept of manifest destiny, condemning both the bloodshed in the Mexican–American War and the militant expansionism behind it.

Thoreau's references to the "invading army" depict American forces as the occupiers of a defenseless nation. The war's results backed him up. Throughout the Mexican–American War, the United States consistently gained territory until the war's end in 1848 with the Treaty of Guadalupe Hidalgo. General Ulysses S. Grant called the war "one of the most unjust ever waged by a stronger against a weaker nation."

Thoreau's Resistance and Night in Jail

Thoreau was not the first American to stop paying taxes in protest. Algonquin Indians had refused to pay taxes to the conquering Dutch, early Americans had resisted Britain's Stamp Tax, and in the 19th century, some free black communities in the North argued for tax refusal. Indeed, Massachusetts abolitionist Charles Lenox Remond recommended that free African Americans choose jail over paying discriminatory institutions, and used the slogan, "No Privileges, No Pay," echoing the American revolutionary war cry of "No Taxation Without Representation." Closer to home for Thoreau, fellow transcendentalist and abolitionist Bronson Alcott was arrested in Concord for not paying the poll tax, three years before Thoreau's own arrest.

The poll tax was a capital tax all adults in the community paid. (There were no income taxes, and Thoreau didn't own enough land to pay property taxes.) In 1842 Thoreau stopped paying the poll tax. Four years later, in 1846, he left his cabin on Walden Pond to run errands in Concord. Local constable Sam Staples arrested him and took him to jail, where he spent one night. An unknown individual, probably Thoreau's Aunt Maria, paid the back taxes for him, and he was released, whereupon he joined the "huckleberry party," the pickers he refers to in the essay.

Upset his debt had been paid, Thoreau believed the government missed the point of his actions. He wrote a lecture to explain his reasoning and to satisfy local curiosity about his night in jail, and then delivered it at the Concord Meeting Hall in 1848. In 1849 fellow activist Elizabeth Palmer Peabody published the lecture as an essay with the title "Resistance to Civil Government" in *Aesthetic Papers*. After Thoreau's death, the essay was republished with the title "On the Duty of Civil Disobedience." (No evidence shows Thoreau coined or used the term *civil disobedience* himself.)

Influence on Political Activists

Before the publication of Thoreau's essay, the tactic of civil disobedience as a means of opposing war and slavery had been addressed mostly by American Quaker writers. Thoreau was the first American writer to address the topic from a nonreligious perspective, placing the emphasis on individual conscience instead. His essay was thus able to reach broader

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audiences as a critique of American imperialism, with which everyone was familiar, regardless of individual religion.

Although some 20th-century readers found Thoreau's call to action impractical, and impossible for everyday citizens, others were inspired. In the 1960s, when the American civil rights movement and anti–Vietnam War movement gained ground, protesters embraced Thoreau's ideas. Civil rights activist Martin Luther King Jr. cited "Civil Disobedience" as an influence in his practice of nonviolent resistance. Playwrights Robert E. Lee and Jerome Lawrence dramatized Thoreau's protest in their 1969 play *The Night Thoreau Spent in Jail*, helping establish Thoreau as an icon for later antiwar activists.

Outside of the United States, Indian independence leader Mohandas Gandhi was influenced by Thoreau's essay as he led mass protests against British imperialism in India. "Civil Disobedience," Thoreau's blueprint for action, also inspired Russian writer Leo Tolstoy, German philosopher Martin Buber, South African activists protesting apartheid, Danish resistance fighters, and many other thinkers, dissidents, and political leaders around the world. Despite Thoreau's specific references to 19th-century Massachusetts, his message has been adapted to multiple situations and times in history.

Author Biography

New England Beginnings

Henry David Thoreau was born on July 12, 1817, in Concord, Massachusetts, a town near Boston. His father, a failed shopkeeper, moved the family from Concord to Chelmsford to Boston, and then back to Concord. John Thoreau's reputation for being too lenient about payment of debt might explain his record of business failures.

The family returned to Concord when young Thoreau was six. His father started an in-house pencil factory, and his mother, Cynthia Dunbar Thoreau, took in boarders. The pencil business was successful. Ultimately, young Thoreau came up with production modifications that made Thoreau pencils the top brand in America at the time.

In 1833 Henry David Thoreau entered Harvard College, once remarking that the curriculum there had "all the branches and none of the roots." He had the bad luck of graduating during the Panic of 1837, a five-year depression during which time employment levels dropped to the lowest they had been in the nation's history. Thoreau patched together a livelihood by surveying, teaching, lecturing, and working at the pencil factory.

Joining the Transcendentalist Community

Around the time of Thoreau's graduation, fellow American writer Ralph Waldo Emerson—a famous philosopher and pastor—moved to Concord. Emerson was soon followed by American writers Margaret Fuller, an editor and journalist; Bronson Alcott, a teacher (and father of writer Louisa May Alcott); and Nathaniel Hawthorne. This collection of writers, led by Emerson and Thoreau, developed the philosophy of transcendentalism, which advocated the discovery of truth and knowledge through intuition, imagination, sensory experience, and the study of nature.

While many of Thoreau's intellectual friends were married, with families and careers already in place, Thoreau lived by himself and seemed disinclined to find a traditional job. Even among his fellow Concord transcendentalist philosophers, he was something of an oddity, although writer Louisa May Alcott fell in love with him and used him as the inspiration for the character Mac in her book *Rose in Bloom* (1876). At the time he decided to build a solitary cabin at Walden Pond, Thoreau had been living in Emerson's house for months. He had also accidentally caused a serious forest fire that angered many Concordians. Perhaps, he believed this was an ideal time to explore his spirituality by putting his transcendentalist beliefs to work and experiencing life in the wilderness.

Life on Walden Pond

Using a borrowed ax, Thoreau constructed a small cottage near Concord's Walden Pond in 1845. The solitude and natural setting provided a perfect backdrop for serious writing. Thoreau carried out his quest to live as simply and mindfully as possible. He grew his own food, rambled through the woods, and read the great philosophers. His close observations and lively descriptions of plant and animal life show he took to

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heart the notion of embracing nature as his teacher.

During the two years he lived at Walden, Thoreau wrote *A Week on the Concord and Merrimack Rivers*. In giving the occasional lecture, he realized his audiences wanted to hear about his life in the woods, so he began writing about Walden Pond. He structured the book chronologically and published *Walden; or, Life in the Woods* in 1854.

Activism for the Abolitionist Movement

Thoreau left his cabin and moved back to Concord in 1847. He wrote his most famous essay, "Civil Disobedience," published in 1849, after he spent a night in jail for refusing to pay a poll tax. He refused the tax because it helped support the Mexican–American War (the 1846–48 war between Mexico and the United States over the annexation of Texas) and the enforcement of proslavery laws, both of which he strongly opposed. Thoreau worked tirelessly for the abolitionist (antislavery) movement as a speaker, supporter of other abolitionists, and conductor on the Underground Railroad (a network of escape routes leading from the South to the North). He contracted tuberculosis (a bacterial lung infection)—perhaps exacerbated by pencil dust—and became more and more incapacitated throughout the 1850s. He died on May 6, 1862, his work having helped bring about the end of slavery, and his essay forming the basis for some of the most important—and dramatic—social changes of the 20th century.

Plot Summary

Section 1 (Why the Best Government Governs Least)

Thoreau begins with the conviction that a limited government is the best government. He thinks government only gets in the way of people's efforts to create a free society. The solution, he says, is a "better government" in which conscience rules instead of law.

Most men serve the State as "machines" and associate themselves with a disgraceful government that allows slavery. Although everyone "recognize[s] the right of revolution," they mistakenly think revolution is no longer necessary. He argues for immediate reform in Massachusetts, where "merchants and farmers" are too busy making a living to consider the devastating effects of slavery and the Mexican War.

Section 2 (How to Achieve Abolition)

People may have good intentions, but they don't act "in earnest and with effect"; voting is not enough. Most voters select the best candidate available, passively accepting injustice and immorality, even if they are not engaged in immoral acts themselves.

Rather than wait for unjust laws to be changed, Thoreau believes individuals should disobey those laws immediately. Abolitionists, for instance, should stop paying taxes to slave-supporting Massachusetts. An individual shouldn't wait for others to join him, but should be a "majority of one" in doing the right thing. The penalty will be imprisonment or a hefty fine, but if even one man goes to prison for his abolitionist beliefs, slavery might actually end. If more people choose punishment over following unjust laws, the laws are more likely to change.

Thoreau acknowledges that the State will harass those who challenge its authority, especially if they (like him) don't have much money. But he thinks his liberty is worth more. To illustrate his point, he has refused to pay taxes to support a preacher whose church he doesn't attend.

Section 3 (How to Conform to Honorable Laws)

Thoreau hasn't paid his poll tax for six years and, as a result, spent one night in jail—where he felt free, not confined—and pitied his jailers for not understanding him. He describes his night there as a learning experience, which felt like a journey to a new town. When he was released, he saw the town he lived in more clearly. He explains he doesn't mind paying taxes for services such as highways and schools; he just wants to "refuse allegiance to the State." Although he regrets

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inconveniencing his neighbors by not paying his tax, he has no "wish to quarrel" and still wants to live by his principles.

Any government, he reasons, is going to be imperfect. Even the best politicians and reformers have limitations. Truly wise legislators are rare. Even a democracy, which seems to be the best form of government yet, isn't a perfect "free and enlightened State" because it lacks respect for the individual.

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Section Summaries

Section 1 (Why the Best Government Governs Least)

Summary

Henry David Thoreau supports the motto, "That government is best which governs least," but really thinks the best government shouldn't govern at all, for a government can be easily "abused and perverted." For example, only a small percentage of people in America agreed to the Mexican War; most people opposed it. Rather than a vital force of the people, the government is a "wooden gun to the people." Any good accomplishment, such as education, freedom, and settlement of the West, comes from the hard work of individual Americans. Government blocks more work than it allows.

Thoreau does not want government to disappear; rather, he wants it to improve immediately. He envisions a State in which conscience, not majority rule, decides right and wrong, in which one's first obligation is to do right, not to obey the law. Law itself, he says, can make decent men do unjust things. Soldiers he sees marching to wars, for instance, are serving powerful leaders and the State "not as men mainly, but as machines." Meanwhile, citizens view the soldiers and corrupt leaders as patriots and view the true patriots—people of conscience—as "enemies." This view is the consequence of people not exercising their consciences and moral judgments.

No man can align himself with this country's government "without disgrace," for Americans are living under leadership that allows slavery. Thoreau believes all men understand the right of citizens to revolt against tyranny, as they did in the American Revolution of 1776. Why did men rebel in 1776 against a government that "taxed certain foreign commodities" but now see no need to rebel when the United States, in the mid-1800s, organizes "oppression and robbery"? One sixth of the American population is enslaved, and Americans have unjustly invaded Mexico. It is time for another rebellion.

He mentions William Paley, who argues in "Duty of Submission to Civil Government" (part of the longer work called *The Principles of Moral and Political Philosophy*, published in 1785) that citizens must obey established rulers for society to function. About resisting government, Paley writes, "Every man shall judge for himself" whether resistance costs too much. Here, Thoreau thinks Paley has missed the essence of resistance: sometimes resistance costs a great deal, but it is still right to resist. The United States and Massachusetts, similarly, are accepting the convenience of slavery and the Mexican War at the expense of conscience.

Analysis

The quotation "That government is best which governs least" mirrors the statement Ralph Waldo Emerson makes in his essay "Politics": "The less government we have the better." The version Henry David Thoreau uses may have come from Thomas Jefferson. Thoreau's vision of a limited government and respect for individual power is similar to the political movement known today as libertarianism. Libertarian thinkers include Jefferson, American writer Thomas Paine, Scottish philosopher David Hume, and others who believe the best government leaves individuals alone, giving each person dignity and respect, or "liberty under law."

When Thoreau says the American government is a "tradition," he is using the word *tradition* in the way transcendentalists often did, to mean "authority that should be questioned." In his essay "Nature," Emerson calls for "a poetry and philosophy of insight and not of tradition." Thoreau is advocating a similar idea here. Because Americans have traditionally followed their government into war does not mean they should continue to do so, especially if they disagree with the war.

Further explaining his stance on government, Thoreau distinguishes himself from the "no-government men," possibly referring to a type of protester called a "nonresistant." Abolitionist leader William Lloyd Garrison founded the New England Non-Resistance Society in 1930 as a pacifist rejection of violence, specifically state violence. Nonresistants did not participate at all in government; they neither held office nor voted. Thoreau ascertains his agenda is different from that of the nonresistants. He is definitely not opposed to following government regulations or even paying taxes. But he wants better regulations and taxes that go to worthwhile causes. He keeps his argument broad and understandable, his only obligation being "to do what I think right."

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The metaphors Thoreau uses to describe government emphasize his disregard for the present system. He personifies the standing army as "only an arm" of a larger body, unable to think for itself. Government is "a wooden gun" pointed at the people; it looks intimidating, but it is really fragile. Trade and commerce are "made of India rubber," a flexible material able to spring over governmental red tape.

The extended metaphor Thoreau employs in the essay is the comparison of government to a machine. In the second paragraph, he introduces the image of a machine by explaining how people need to think of a government as distant, vague "complicated machinery" to feel protected and safe. He believes citizens are more connected to the machinery than they realize. Soldiers and government employees become parts of the machine, no longer men but "forts and magazines" or, in their failure to act from moral judgment and their conscience, they are on the level of "wood and earth and stones." Even men not in the military serve the state as "machines" by failing to disobey. (The *posse comitatus* is a group hired to enforce the law, similar to a police force.) Serving government leads to physical inhumanity. Cold and impersonal, a machine is in constant motion. If men are not guided by their moral judgment and conscience, then as individual parts of the machine, men have no control in what they do; they neither act nor think for themselves. However, a human being can change and act as an individual, moving against the machine's motion, and accept the costs of such action.

Thoreau's negative views on war become clear in this section, as he describes war in general, and the Mexican War in particular, as shameful for a nation. If all soldiers know war is a "damnable business," what, he wonders, do veterans die for? Why are they considered heroes for doing something they know is wrong? The first piece of poetry Thoreau quotes—"Not a drum was heard, not a funeral note"— is from "The Burial of Sir John Moore after Corunna," an elegy, or poem to honor the dead, by British poet Charles Wolfe honoring Sir John Moore, a British Lieutenant-General who died in battle. Like Moore, Thoreau suggests, soldiers may die with no ceremony, be buried in the Navy Yard, or simply be "laid out alive and standing," stripped of their humanity.

Thoreau makes his argument more specific as he discusses "the right of revolution." He recognizes people have a different perspective of the past than they do of the present. Free men in the North don't see themselves as oppressed by tyranny. They might even think the Mexican War is more justifiable, and takes less of a toll, because "ours is the invading army." But Thoreau thinks the opposite: being associated with the invading army is worse than being invaded. Americans in 1775 fought over the minor "friction" of a trade tax on goods, but in the 19th century they are ignoring human rights abuses and engaging in unnecessary wars.

The second series of quotations is from Shakespeare. "Clay" and "stop a hole to keep the wind away" are from *Hamlet*; at Ophelia's open grave Hamlet mentions the dead Caesar: "Imperious Caesar, dead and turn'd to clay,/Might stop a hole to keep the wind away." The longer verse, "I am too high-born to be propertied," is from *King John*. The character Thoreau quotes, Louis the Dauphin, refuses to submit to orders from another man. The word *propertied* echoes Thoreau's conception of men as part of a machine and the practice of slavery, in which human beings are considered property. As a transcendentalist Thoreau asserts the dignity of the individual. Living according to conscience is not selfishness; on the contrary, it is the most selfless way of life he can imagine, acting as a martyr who "gives himself entirely to his fellow-men."

English clergyman William Paley, whose ideas Thoreau discusses, believes in "expediency," or convenience and practicality at the expense of morality. The title Thoreau chose for this essay, "Resistance to Civil Government," recalls Paley's chapter "Duty of Submission to Civil Government" in *The Principles of Moral and Political Philosophy*. Paley emphasizes avoiding "public inconveniency" or any interruption of ordinary life; in Section 3 of "Civil Disobedience," Thoreau takes legislators like Daniel Webster to task for promoting "efficiency" or government running as scheduled. If everything functions as it should, people are willing to overlook a few human rights abuses. The situation seems more urgent to Thoreau, however. He makes the dramatic comparison of saving a drowning man; it will not be convenient or efficient and may well cost him his life. He uses the phrase *cost what it may* to emphasize the actions he is suggesting will be risky and, indeed, may have grave consequences.

"Does any one think that Massachusetts does exactly what is right ..." is a rhetorical question, a question asked not to get an answer but to emphasize a point. This kind of question appears frequently in persuasive writing as a tool of rhetoric or debate. The quotation beginning, "A drab of state ..." is from the play *The Revenger's Tragedy* by 16th-century playwright Cyril

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Tourneur. The state is compared to a woman with her "soul trail[ing] in the dirt": shamed and disgraced.

Section 2 (How to Achieve Abolition)

Summary

Obstacles to slavery reform, Henry David Thoreau contends, are not only the powerful slaveholders in the South but the businessmen in Massachusetts, more interested in earning a living than in preserving their humanity. Thoreau's real "quarrel" is with these New England neighbors. Although most people think social progress is slow because the majority is "unprepared," Thoreau believes progress is slow because people don't act on their principles. Claiming they are opposed to slavery and the war, many people "sit down with their hands in their pockets," feel powerless, and do little as they wait for others to bring about change. Thinking and acting this way removes their feelings of guilt.

Even voting is ineffective because it's a gamble, "playing with right and wrong." A voter may cast his ballot for a cause he thinks is right, but he isn't "vitally concerned"; he continues to do nothing but hope the odds will swing in his favor. Men who support a popular cause are not much better. By the time a majority votes to abolish slavery, Thoreau thinks, the vote won't be an act of courage; rather, slavery will be on its way out anyway, or voters will be indifferent. Citing the example of an upcoming Baltimore convention, Thoreau believes politicians won't stick to principle but will choose and serve the available presidential candidate. Thoreau laments the lack of courage he sees in most Americans. Because the population has grown, the average American is no longer a brave settler but an "Odd Fellow," talkative but not very bright or independent, concerned only with living in comfort and making charitable gestures for show.

Thoreau does not think an individual needs to "devote himself" to righting wrongs; most likely he has other things to do. But at least he can stop supporting causes he does not believe in, and not achieve a good life by "sitting on another man's shoulders." For instance, some of Thoreau's neighbors have publicly declared they'll never fight in Mexico or never stop a slave rebellion. Yet their taxes and lifestyles support slavery and the war, both of which they claim to oppose. They even will admire a soldier who refuses to serve in an unjust war, while they continue to enable the war themselves.

The biggest roadblock to reform, Thoreau finds, lies with those who demonstrate "disinterested virtue": disagreeing with what their government is doing but supporting the government nonetheless. Some citizens are pushing to "dissolve the Union" but will not go so far as to "dissolve it themselves" by refusing to pay money to the Treasury to keep the war going. Thoreau claims the relationship between the individual and the State parallels the relationship between the State and the Union, and "have not the same reasons prevented the State from resisting the Union which have prevented [individuals] from resisting the State?"

Thoreau does not understand how people can be satisfied merely by holding opinions and lacking the action to back them up. "Action from principle—the perception and the performance of right"—is a revolutionary concept, dividing states and families and creating internal conflict between an individual's best and worst nature.

So what should men do in the face of unjust laws? Should they try to change the laws, or should they disobey them? Most men wait until the majority decides to change the laws, fearing resistance will worsen the situation. The problem, Thoreau says, is the government, which doesn't want to reform, won't hold itself accountable to the people, and punishes courageous leaders. In fact, the government imprisons poor men who won't work, but frees rich men who embezzle large sums.

Thoreau compares the unjust government to a "machine." If people apply enough "friction" or resistance, the machine will stop working, but if the machine is specially equipped, then the remedy might be worse than the injustice. However, if the injustice causes one person to behave unjustly to another, then the law must be broken, as a "counter friction" to the machine. Just because one man cannot change everything, he does not need to continue supporting evil. Nor does petitioning the government do much. What he must do is call directly on all who consider themselves opposed to slavery and ask them to "withdraw their support, both in person and property, from the government of Massachusetts."

The only direct representative of the government Thoreau meets is the annual tax collector, his "civil neighbor." As

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someone who has chosen to work in government, the tax collector will have to choose how to treat a resistant Thoreau—respectfully as an individual or rudely as an enemy. The relationship between citizens and the government is a "copartnership." And if only one "HONEST man" were to stop holding slaves, withdraw his support for the State, and go to jail, ending the partnership, Thoreau thinks slavery would end right then. In fact, the only place for men who truly value justice in Massachusetts is in prison with fugitive slaves, Mexicans, Indians, and others who the State decides "are not *with* her but *against* her." With enough people in prison, the State will have to act. It is more of a "violent and bloody measure" for citizens to pay their taxes, which support wars, than it is for them to refuse payment. Thoreau defines this action as "a peaceable revolution."

Imprisonment isn't the only punishment the State doles out; it also can seize goods and property, though Thoreau admits the men most likely to resist are the poorest with the least to seize. A rich man, on the other hand, is "always sold to the institution which makes him rich." Thoreau sees no exception to this rule: money corrupts. Rich men who want to be virtuous may have uneasy consciences. He gives the biblical example of coins engraved with the image of the ruler Caesar; men who "enjoy the advantages of Caesar's government" must pay the ruler his taxes. Most people Thoreau encounters fear losing these advantages and government "protection"; Thoreau freely admits a life lived in disobedience to the State is difficult. People who choose to disobey unjust laws cannot own much; the cost of being rich is being a "good subject." Thoreau thinks his independent, minimalist life costs him less.

As an example of government control, Thoreau tells of being required to pay a tax for the support of a pastor at a church he never attended. Thoreau doesn't want to be indebted to any society or organization he hasn't chosen to join, such as the church.

Analysis

Thoreau has already explained why the abolition of slavery should be an immediate goal. Now he tackles the harder question of how to achieve it. What should American citizens or Massachusetts residents do if they're convinced by his argument in Section 1?

First, people in the North should realize they are the ones with the problem. Thoreau recognizes the tendency to demonize the Southern slave states, while at the same time the Northern states do as much to further slavery through their compromises. He wants people to stop making empty gestures of virtue. Men who "hesitate," "regret," and even "petition" may think they are doing all they can do, but Thoreau wants them to do more by involving themselves directly.

Voting, considered one of the hallmarks of involved citizenship in a participatory democracy, means little, if nothing, to Thoreau. As he explains in his discussion of the 1848 Baltimore convention, he holds elected officials in low regard, primarily because officials don't rely on "wisdom and honesty," are unpredictable, and won't make real changes. If a man believes in a cause enough to vote for it, Thoreau reasons, why leave it to "the mercy of chance"? He knows government works slowly when citizens follow the rules. Thus, without immediate disobedient actions from citizens that may indeed incur great personal costs and risk to character, slavery will likely be abolished only when it becomes inconvenient for voters—not nearly soon enough.

Thoreau's townsmen's conception of resistance differs from his. Whereas they imagine dramatic acts such as staunchly refusing to "march to Mexico" or refusing to "put down an insurrection," if requested to do so, Thoreau thinks refusal to obey, like passive acceptance of evil, does not require showmanship to be effective. It can be as simple as denying to pay the government money. He mentions a movement in Northern states in which several men, including William Lloyd Garrison, were "petitioning the State to dissolve the Union," or declare independence from the United States. Garrison's motto was, "No union with slaveholders." This movement was similar to the secession movement, with the opposite view of slavery, in Southern states. According to Thoreau, however, they could achieve independence more easily by not paying money to the Treasury.

Even with simple measures, results will be dramatic, for Thoreau knows he is calling for revolution in his own way. Principled action is "revolutionary" because it would change both individuals and society. In *Walden*, his book about living with radical self-sufficiency on Walden Pond, Thoreau mentions facing the "essential facts of life"; one of these facts is acting in accordance with his conscience. He also describes "action from principle" as a radical act of patriotism and courage. When men are individually wronged (for instance, when someone owes them money), they take steps to correct

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the situation. What if the collective wrongs of society, such as wars and slavery, were as important to people as individual slights were? What if men were as affected and upset by crimes they didn't directly suffer from as those they did? In mentioning rebels having been punished for telling their governments what they didn't want to hear, Thoreau specifically mentions the historical and religious figure of Christ, the scientist Nicolaus Copernicus, and the theologian Martin Luther. Thoreau knows enough time has passed for readers to recognize these rebels' influences and contributions to society. Thoreau uses historical examples to ask readers how history will judge the actions they presently are taking.

Thoreau's explicit demand for action is "break the law." When he discusses "adopting the ways which the State has provided," he is referring to voting, social reform, petitioning, and other government-approved ways to advocate for progress. None of these brings about fast results, especially with Thoreau's mistrust of politicians. Skeptical, too, of social reform movements, Thoreau believes true change must come either from the individual or not at all. He sees government-provided outlets for advocacy, such as petitions, as ineffective, pacifying methods for change; people do not realize that their allegiance to the government itself is the real problem, and in Section 3 he will cite Daniel Webster's Constitution-based defense for slavery as a cowardly way out. The direct way is the hard way and involves sacrifices, not signatures.

The next demand he makes on readers is more extreme: anyone who cares about justice should be in prison, a place for "freer and less desponding spirits." This demand underscores Thoreau's unorthodox ideas about freedom, slavery, and imprisonment. Only in jail, he believes, can he truly be free under the current laws. By contrast, free men of the North are actually enslaved to their federal and state governments. If a majority of free voters agree to vote out slavery when it becomes an easy, government-sanctioned choice, Thoreau says, "*They* will then be the only slaves." His reversal of definitions causes readers to think about government, prison, and obedience to the law in a new way, rejecting the principles of participatory democracy as shallow and ineffectual; any dependence on the State is a form of slavery.

Turning to the practical complications of his resistance plan, Thoreau acknowledges the difficulty of living by one's principles. A true dissident cannot own much, if any, property, must grow his own food, and must be prepared to relocate at any time. If he has family, the government will harass them as well.

The quotation that begins, "It costs me less in every sense," refers to the Greek mythological character Antigone, who also defied law to do what she thought was right (give her brother a burial) and who believed disobedience cost her less than obedience would have. This life works for Thoreau, who cannot imagine another way of living; but can it work for everyone? Most tax resisters in Thoreau's era did not practice voluntary poverty; he is creating a specific image of a revolutionary. Like many of the historical figures he mentions earlier—Christ, Copernicus, Luther, and Franklin—Thoreau considers himself a rebel and visionary, someone with no choice but to live an unorthodox, solitary life.

In discussing specific actions he wants readers to take, Thoreau provides the example of a man who won't earn "nine shillings for the State." This is the amount of unpaid tax Thoreau owed, the equivalent of about a dollar and fifty cents. (In the early 19th century, some areas of New England still used the British currency of shillings.) It is not much money, and the small sum serves to make the State's action of imprisonment seem even more extreme.

The "tax-gatherer" is local constable Sam Staples, whom Thoreau knew well (his "civil neighbor"). Thoreau knows his refusal to pay taxes has created some awkwardness in their relationship, because Staples now needs to treat him as a "disturber of the peace." But Thoreau doesn't believe in maintaining civility at the expense of doing the right thing; instead, he feels civility is the enemy of what is right. If he himself doesn't worry about appearing respectable and obeying unjust laws—if he can "withdraw from this copartnership"—then change may happen. Thus, he is breaking an unspoken code of civility by attacking the problem at its roots.

His local example of the "State's ambassador" is a reference to Samuel Hoar, a senator from Concord. Hoar traveled to South Carolina in 1844 hoping to overturn a state law requiring free black sailors to remain imprisoned on the ship, and possibly sold back into slavery, when their ship docked at a South Carolina port. The government of South Carolina did not welcome Hoar's intervention and forced him to leave. Hoar told the story at a Concord town hall meeting, where Massachusetts residents were furious on his behalf. When Thoreau tells the story, however, he places the blame with Massachusetts: "that State which is so anxious to foist the sin

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of slavery upon her sister" South Carolina. Hoar's actions would have had much more of an impact, according to Thoreau, if he had protested the unjust laws in his seemingly more progressive Northern state.

Money, he believes, not only endangers men's souls but keeps them willfully ignorant. When he writes the "Herodians"—a sect of Biblical Jews who supported King Herod and denied Jesus—"did not wish to know" how much money belonged to the government and how much to a higher power, Thoreau implies the wealthy in Massachusetts similarly don't want to know the truth about their money. They would prefer, for instance, to remain ignorant of where their taxes go.

Thoreau uses the imagery of the body to underscore his point. With the idiom "wash his hands of it," Thoreau suggests cleansing himself from direct contact with the government's wrongdoing. He moves on to a metaphor involving the whole body; "sitting upon another man's shoulders" reminds readers that oppression, like a body, is physical, has weight, and can inflict a burden on the one who must bear it. Transcendentalists believed in the divine right of the individual to "pursue his contemplations," and Thoreau wants mental and physical freedom for everyone, even people he has never met. His idea of justice is egalitarian: the same equality for every human being.

He also uses the visceral metaphor of blood to describe a wounded conscience as "blood shed," and minces no words when saying those who pay taxes help the State commit "violent and bloody" acts. Thoreau positions the State as the aggressor and advocates a nonviolent method of resistance. Although other activists have used Thoreau as an example of peaceful protest, Thoreau himself never committed to nonviolence during his career. When tensions heightened in the abolitionist movement, he was not opposed to forceful and violent measures if necessary, as his later defense of John Brown's antislavery movement indicates. He wanted resisters to take whatever action was most effective at the time.

Thoreau returns to the metaphor of government as a machine. What is the place in this machine for nonconformists or protesters involved in civil disobedience? They are a "counter friction," or force resisting the machine's power, pushing its motion in the other direction. If citizens obey its laws and "let it go," the government machine may wear out on its own, and although it may invite citizen participation through a "spring" or a "pulley," these methods will hurt others. In Thoreau's view, the machine is a violent mechanism, seeking to do active harm, and its range of motion and power paints a picture of violence.

The statement beginning "Unjust laws exist ..." contains another example of a rhetorical question. Directly including readers by using the pronoun *we*, Thoreau asks them to think for themselves and decide what to do, or at least recognize what they already are doing. The third and most unorthodox choice, transgression, is mentioned last. The first two options are implied to be the imperfect solutions reformers have opted for in the past, and they have not worked.

Section 3 (How to Conform to Honorable Laws)

Summary

Henry David Thoreau hasn't paid a poll tax for six years. He spent one night in jail for nonpayment of taxes, but he didn't feel confined. Instead, he felt freer than his countrymen on the other side of the wall. The jailers couldn't reach him; they could punish only his body. The State doesn't have "superior wit or honesty, but ... superior physical strength." While the State's physical strength enables it to jail him, the State cannot force Thoreau to change who he is. After all, he asks, what kind of life would man live if he were forced to be someone other than who he is?

Thoreau describes his night behind bars as "novel and interesting." His cellmate was a friendly man, in jail for burning a barn. Thoreau suspects he set the barn on fire by accident. Thoreau observes the writing former prisoners have left behind in his cell and the evidence of escape attempts. He asks his cellmate a lot of questions. At night Thoreau listens to sounds he's never heard or noticed before, and imagines the town hundreds of years ago "in the light of the middle ages." He thinks he's beginning to understand the town and its inhabitants.

When Thoreau is released (after "someone interfered" to pay the tax), his view of his neighbors has changed. He feels he can no longer trust them; they take no risks and are not serious about wanting to do the right thing, hoping instead "a certain outward observance and a few prayers" will redeem them. Thoreau admits to being harsh, because his neighbors

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probably don't even know there is a jail in their village. He finishes the errand he came into town to do before his arrest, and then goes to pick huckleberries with a group of berry pickers.

Thoreau wants to be a "good neighbor"; he pays highway taxes and supports education. He is as concerned with being a good neighbor as he is with opposing the State where necessary. That said, whoever paid his tax might have been concerned about him, but they were only furthering the State's injustice, and Thoreau is not happy about being bailed out.

Sometimes Thoreau thinks his neighbors mean well and would do better if they could, but he sees no reason to compromise his principles simply because others do. He knows the government isn't asking him for much money compared to the penalty—the "overwhelming brute force"—he experiences if he doesn't pay. Why does he "put his head into the fire"? Thoreau says he refuses to be satisfied with people as they are. He believes humans, unlike "rocks and trees and beasts," have the capacity to change.

Not trying to make excuses for disobeying the law, Thoreau acknowledges that the Constitution and the American government, from some points of view are good, "admirable and rare things." But "from a point of view a little higher," they may look less admirable. Only a man without imagination can live peacefully under "unwise rulers." Legislators, who work in the government, lack the distance and perspective to see the institution the way it really is.

Thoreau says Daniel Webster, a well-known senator, is the only one in government with "sensible and valuable words" but isn't always right; "not a leader, but a follower." Thoreau cites a speech Webster gave before the Senate, in which Webster used the original Constitution to defend slavery and discourage abolitionist movements. Webster is more concerned with "expediency," or efficiency, than with wisdom. He doesn't try to find truth at its source. Thoreau thinks brilliant legislators are rare; although some admired legislators are good speakers, they lack "genius or talent" for the more "humble" but more important work of governing.

Thoreau says government has the power only he ("the governed") gives it, and until leaders have "true respect for the individual," a truly free State will never exist, not even in a democracy. He likes to imagine a State that treats all with justice and that doesn't mind a few residents who live independently from the government. This situation would lead to a "perfect and glorious State," which Thoreau has imagined but never seen.

Analysis

In the final section, Henry David Thoreau explains his own resistance and his vision for radical change. When he stopped paying the poll tax six years before writing "Civil Disobedience" and four years before the Mexican War was declared, his resistance was not in response to the war, but to the other misdeeds of government (slavery, for one). As he wrote the essay in response to a rapidly changing world, he revised his motives to fit the situation and gave his actions new meaning.

The poll tax itself was not a federal tax but rather a local tax for states, counties, and towns. Its revenues did not pay for the Mexican War, which was financed by loans and land sales. But Thoreau sees local government as complicit in federal crimes. His frequent references to the state of Massachusetts show he considers local leaders, and even his neighbors, as misguided as the entire country.

He expresses pity and sorrow, rather than contempt, for his jailers. He saves his anger for the person who paid his tax, who he thinks should have known better, and for the ineffectual reformers who keep the State running. But in jail he sees that the State is not as powerful as he imagines it to be. The people in power don't know what to do, so they put Thoreau in prison, thinking he'll conform. Even though their action has the opposite effect—Thoreau leaves even more determined to effect change—the system will continue to operate. He offers an example from nature, where he draws inspiration. Like two trees growing side by side, he and his jailers will "both obey their own laws," no matter what.

"Civil Disobedience" includes an example of a prison narrative, showing prison as a place that provides a unique vision. Inside a cell the prisoner can see truths about society he cannot see on the outside. Thoreau feels as if he has traveled both in distance and time, describing jail as a place slightly removed from the real world. Citizens not incarcerated are unaware of the injustices inside a prison and of the truth it reveals. He pointedly describes jail as one of his town's "peculiar institutions," employing the phrase "peculiar institution," which is often used as a euphemism to describe slavery.

The sentence "This is the whole history of 'My Prisons'" is a

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reference to the prison memoir *My Prisons* or *Le mie prigioni* by Italian author Silvio Pellico (1789–1854). Thoreau is making the reference as an understatement; his one night in a local jail bears no comparison to the years of suffering Pellico endured as a political prisoner. But like Pellico, Thoreau comes to a new understanding of the outside world.

Thoreau, who had hoped to spend a longer time in a cell, observes the jail from a journalistic distance. He writes from the point of view of a traveler or anthropologist, even noticing the prisoners' forms of resistance in the sung verses of the men who attempted to escape. He himself isn't tortured or mistreated. Even his cellmate appears content. He feels quietly superior to those on the other side, believing "I alone of all my townsmen had paid my tax." Yet he describes the materials of the prison as harsh, strong, and man-made, like the machine of government: "wood and iron, a foot thick" and "stone and mortar." He himself, "flesh and blood and bones," is a creation of nature, made of something entirely different and untouchable.

What surprises and alarms Thoreau most is the divide he feels between himself and the rest of society. He imagines the psychological "wall of stone" separating him from his neighbors to be more difficult to surmount than any physical wall. (Gandhi repeats the image of the wall in a record of his own imprisonments.) Acquaintances don't greet him, an offender, as part of the community; instead, they observe him like an outsider.

At the end of his journey, however, Thoreau is able to join in a huckleberry picking. The nature-loving Thoreau knows where to find the best huckleberries in the bushes; he is welcomed into the group and ascends to "one of our highest hills, two miles off." Now back in the natural world, he is physically and mentally transcending, or rising above, the State. Thoreau emphasizes this physical aspect of his journey to highlight the mental transcendence of his prison insights.

Thoreau returns to the language of conflict, declaring personal war with the State, and makes the unexpected statement, "I will still make use and get what advantage of [the State] I can." Taking advantage of the State's resources may seem inconsistent with Thoreau's desire to withdraw from the government and be independent of it, but he still feels obligated to participate in some forms of American citizenship, such as writing the essay to "educate my fellow-countrymen." He also admits his actions may change as "the hour," the time and event he's responding to, changes. He'll do whatever he thinks is necessary, including using State resources.

Furthermore, Thoreau imagines the State not as an anonymous, distant evil, but as a power aided by (and partly composed of) his neighbors—"partly a human force." Government is made up of humans, whose minds he wants to change. He would not try to antagonize an animal, a tree, or any "purely brute" member of the natural world. He has higher standards for humans because they have the capacity to transform and transcend. With minds and spirits, they are able to understand how freedom can be found in the natural world rather than in the physical body.

For someone with low standards, however, Thoreau admits the current American government is perfectly acceptable; for the most part it is functional, efficient, and respectable. Again he contrasts "lower" and "higher" in both life forms and ways of thinking, showing the transcendentalist desire to rise above mundane concerns and imagine a better world.

Thoreau longs for vision and wisdom in his rulers, not prudence or expedience. They'll make the most prudent, or convenient and effective, choice instead of the right choice, and place policy over people. Thoreau acknowledges, to a certain extent, that this is the legislator's job. Government is set up to reward efficiency and discourage introspection. Yet he names Senator Daniel Webster specifically, because Webster was known for his eloquence and influence on national laws. Thoreau quotes from a speech Webster gave in 1848 on the Mexican War and the admission of Texas to the Union. Webster was led by "the men of '87"—the original writers of the Constitution—to defend slavery because it was written into the "original compact" and formed part of the Founders' original vision for adding states. According to Thoreau, Webster ignores the possibility of change for the better, for the 19th century reflects different views on human rights from those of the 18th century, and people now are speaking up and demanding change. Without adapting to the voice and experience of its people, Thoreau later states, "America would no longer retain her rank among the nations." Therefore, the government should respect the country as living, breathing, and capable of transformation, rather than bound by old interpretations of rules.

Thoreau is dismayed, but not surprised, by Webster's tone-deaf response. The nation has led Webster to make a "desperate answer" to what Thoreau thinks should be an easy moral question, and to ignore his personal morals in the name

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of states' rights. Thoreau points out that Webster is clear to distance himself from "associations formed elsewhere" or abolitionist movements.

As Thoreau moves toward the cautiously hopeful end of his essay, he offers the metaphor of water. Those who want to seek wisdom beyond what has been provided in written texts, such as the Constitution and the Bible, will go beyond these to seek out the sources of truth "trickling into this lake or that pool," and continue the pilgrimage" toward the real source. Thoreau thus sees the dissident not merely as a hero, loner, and revolutionary, but also as a pilgrim or a seeker. He speaks in spiritual terms about good government, imagining an inspirational leader who looks to the Bible's New Testament to learn how to govern compassionately.

An ideal government, to Thoreau, is something sacred. The individual soul is even more sacred, and the best State will honor each person "as a higher and independent power." He returns to the idea he states at the beginning: citizens working together, rather than as an arm of government, lead the nation to progress. Because Thoreau has no perfect legislator as an exemplar, he has created a version of himself as a role model: a dissident who lives "aloof" or apart from the State. Meanwhile, he is wrestling with the question of how to live the most authentic life possible in an imperfect world. Part of his authenticity is the unwillingness to accept the world as imperfect. The use of imagination, he claims, separates those who can't live happily under corrupt governments from those who can look the other way.

“ Quotes

"That government is best which governs least."

— Section 1 (Why the Best Government Governs Least)

This statement establishes Henry David Thoreau's view that the real strength of government lies in the people it governs. Rulers who govern least (or, as he prefers, not at all) respect individual rights to disagree and dissent, and they trust their citizens to do what is right. This argument helps Thoreau explain his resistance to paying taxes for government operations he does not support because they are morally wrong.

"Can there not be a government in which majorities do not virtually decide right and wrong, but conscience?"

— Section 1 (Why the Best Government Governs Least)

Henry David Thoreau believes his only obligation is to his conscience, or inner sense of morality. "Majorities" can be swayed by many influences—money, convenience, manipulation, greed, or indifference—as Americans have seen in the persistence of slavery and the border dispute starting the Mexican War. Consciences, on the other hand, rely more on intuition; transcendentalists believed strongly in this power. Thoreau believes consciences are more trustworthy than laws or political guidance.

"I think that we should be men first, and subjects afterward."

— Section 1 (Why the Best Government Governs Least)

In much of his work Henry David Thoreau considers the question of how a person can live an authentic, honest life. In "Civil Disobedience" he defines a *man* as someone with a strong moral character and a clear sense of self. Thoreau uses the word *subject* to imply subjugation or obedience (for example, a person who is the subject of a ruling king). Anyone who considers himself a subject gives the government power it should not have.

"The mass of men serve the State, not as men mainly, but as machines, with their bodies."

— Section 1 (Why the Best Government Governs Least)

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By saying "the mass of men," Henry David Thoreau implies that most citizens (not only jailers, standing army members, and other groups he names) serve the government in one way or another. The word *serve* suggests a lack of freedom, and the word *machines* suggests a lack of control and consciousness. Without consciousness, men commit their bodies to unjust service of the State. Even men who don't consider themselves slaves—free men—serve the State and don't even know it. Thoreau asks readers to consider what freedom and slavery really mean.

"I cannot ... recognize that political organization as my government which is the slave's government also."

— Section 1 (Why the Best Government Governs Least)

Henry David Thoreau refers to the institution of slavery, still legal in the United States. He does not merely disagree with the government's actions; he verbally renounces his citizenship. By referring specifically to "the slave," he invites readers to consider slavery in more than an abstract sense. Slaves are the fellow human beings of Thoreau and his contemporaries. Readers cannot turn away or ignore them.

"Even voting for the right is doing nothing for it."

— Section 1 (Why the Best Government Governs Least)

In a participatory democracy such as the United States, voting is considered a major civic responsibility. However, Henry David Thoreau's view on voting is different. He sees it as a passive action, especially dangerous because voters think their work "for the right" is finished once they have voted. He goes so far as to compare voting to gambling: voters may hope a law will pass or an elected representative will be honorable, but they don't really know what will happen. Most truly just actions, Thoreau believes, are unpopular and thus will not pass with a majority vote.

"Let your life be a counter friction to stop the machine."

— Section 2 (How to Achieve Abolition)

Henry David Thoreau advocates direct, attention-getting action; the statement is a direct invitation to readers. Thoreau is making a persuasive argument with certain actions he wants readers to take. Let your life—all your actions, not just some of them—show your beliefs. Continuing the metaphor of government as a machine, Thoreau sees civil disobedience as a "counter friction," or opposing force, pushing against the odds.

"Any man more right than his neighbors, constitutes a majority of one already."

— Section 2 (How to Achieve Abolition)

Henry David Thoreau criticizes average voters for waiting until a majority agrees with them before they take civil action. He knows that what he advocates—not paying taxes and not working for the government—is risky, unorthodox, and unpopular, and not many people will do it. He encourages any dissidents to consider themselves a "majority of one" or a member of the winning side. By suggesting dissidents are "more right" and the true majority, he indicts anyone who remains complicit.

"Under a government which imprisons any unjustly, the true place for a just man is also a prison."

— Section 2 (How to Achieve Abolition)

This is one of the best-known statements in "Civil Disobedience." Henry David Thoreau both defends his decision

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to go to prison and warns dissidents of the extreme measures they'll need to take if they really want justice. He urges readers to take a more active role in holding the government accountable, because their own liberty depends on it. No "just man" is truly free until all of them are. In 1918 socialist and reform advocate Eugene V. Debs will echo this statement in his trial, saying, "While there is a soul in prison, I am not free."

"Cast your whole vote, not a strip of paper merely, but your whole influence."

— Section 2 (How to Achieve Abolition)

Henry David Thoreau returns to his earlier discussion of voting, now telling readers how to make their votes count. Constituents have more influence than they realize. Thoreau imagines the impact on federal law if a thousand men stopped paying their taxes; it would be "a peaceable revolution." Even one true dissident would be a revolution.

"Absolutely speaking, the more money, the less virtue."

— Section 2 (How to Achieve Abolition)

Henry David Thoreau's personal ethics require thrift. He owns only what he needs. He believes no citizens could accumulate wealth without somehow compromising their morals to get it. Anyone with a well-paying job is "sold to the institution." With wealth, he thinks, a man doesn't have to consider how to live or ask the hard questions that would make him a better person. By contrast, Thoreau associates virtue with poverty; men who work for justice do not favor owning a great deal of property.

"I was not born to be forced. I will breathe after my own fashion. Let us see who is the strongest."

— Section 3 (How to Conform to Honorable Laws)

Henry David Thoreau speaks here in terms of opposition and direct conflict. As a "counter friction to stop the machine," he sees himself as under attack but unrelenting. He aligns the State with physical power and force, and himself with nature and the desire to live (breathing). He implies he'll prove himself to be stronger than the State, despite the odds seemingly stacked against him. This is a defiant assertion of individualism and a declaration; as long as the State is in power, Thoreau will continue to be a dissident.

"If a plant cannot live according to its nature, it dies; and so a man."

— Section 3 (How to Conform to Honorable Laws)

Henry David Thoreau doesn't expect government to reform overnight. He knows it will dole out punishment "according to its nature." Similarly, he will live according to his own nonconformist nature. He has emphasized at several points in the essay how obeying an unjust law would cause him more harm and danger (to his soul and spirit) than disobeying the law would. He chooses the metaphor of a dying plant to show readers he is discussing matters of life and death.

"To be strictly just, [a government] must have the sanction and consent of the governed."

— Section 3 (How to Conform to Honorable Laws)

Henry David Thoreau sums up his vision of an effective government in this sentence. Laws work only if people choose to obey them, and leaders rule only if people choose to respect them. Because many Americans did not provide "sanction and consent" for slavery, the Mexican War, or other government decisions, Thoreau thinks the rulers are unjust and do not have as much power as they think they do.

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> *"Is a democracy, such as we know it, the last improvement possible in government?"*
>
> — Section 3 (How to Conform to Honorable Laws)

Henry David Thoreau has described the limitations and failures of representative democracy and has stated he would obey a better, more moral government. Now he is challenging American exceptionalism and the idea of expansion and "mission" that helped spur the Mexican War. Maybe American democracy is not the best government; maybe further steps need to be taken. He wants Americans to imagine true justice and freedom, instead of being content with and proud of what they have.

Glossary

abolitionist *(n)* person who supports an end to, or abolition of, an unjust practice. In the United States before the Civil War, the term *abolitionist* referred specifically to a person who supported ending American slavery.

allegiance *(n)* loyalty to a cause or a governing body

aloof *(adj)* apart from, unfriendly, or distant

civil *(adj)* relating to the ordinary (nonmilitary) citizens of a state

civil disobedience *(n)* refusal to follow a law or government demand as a form of protest and to achieve a social goal

conscience *(n)* inner sense of right and wrong

egalitarian *(adj)* relating to the idea that all people deserve the same rights and opportunities

expediency *(n)* practicality and convenience at the expense of being moral and right

lyceum *(n)* hall or building in which public meetings and lectures are held

machine *(n)* apparatus, with multiple parts, created to perform a certain function; *machine* can also refer to a group of people acting together for a common cause (e.g., soldiers as a "war machine")

poll-tax *(n)* fixed-amount tax all adults in a community pay, regardless of income, and often a requirement for voting; the poll tax was used in several American states until its abolition in 1966

posse comitatus *(n)* group of individuals who work as law enforcement, usually armed

redress *(v)* remedy or set right

State *(n)* organized political community under one government; Thoreau frequently capitalizes the word *State* to refer to a government with power and a capacity for violence

subjects *(n)* people under the authority and protection of a government

Union *(n)* the United States of America (the *Union*)

Suggested Reading

Hicks, John H., editor. *Thoreau in Our Season*. U of Massachusetts P, 1967.

Lawrence, Jerome, and Robert Edwin Lee. *The Night Thoreau Spent in Jail: A Play*. Hill, 2001.

Lovell, Jarret S. *Crimes of Dissent: Civil Disobedience, Criminal Justice, and the Politics of Conscience*. New York UP, 2009.

Miller, P. *The American Transcendentalists: Their Prose and Poetry*. John Hopkins UP, 1957.

Thoreau, Henry David. *The Higher Law: Thoreau on Civil Disobedience and Reform*. Edited by Wendell Glick, Princeton UP, 2004.

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